CONTRACT TEMPLATE LIBRARY

Commercial Contracts — Standard Baseline Versions

RAG Corpus for AI Contract Review System

Prepared by: ACME Corporation & ClientCo Ltd.

Risk Profile: STANDARD — Fair and Balanced Baseline

Version: 1.0

Date: [____________], 2024

Classification: Confidential — For Internal Use Only

TABLE OF CONTENTS

IMPORTANT NOTICE

All contracts in this library represent standard, fair, and balanced baseline versions intended for use as a reference corpus for AI contract review systems. These templates are for informational purposes only and do not constitute legal advice. Parties should seek qualified legal counsel before executing any agreement based on these templates. All placeholder names (ACME Corporation, ClientCo Ltd.) are fictional.

---CONTRACT_START---

CONTRACT TYPE: SaaS Subscription Agreement

RISK PROFILE: STANDARD — BALANCED BASELINE

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

Effective Date: [___________], 2024

This Software as a Service Subscription Agreement (hereinafter "Agreement") is entered into as of the Effective Date set forth above by and between **ACME Corporation**, a corporation duly organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 (hereinafter "Provider"), and **ClientCo Ltd.**, a company duly organized and existing under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom (hereinafter "Client").

RECITALS

WHEREAS, Provider is in the business of developing, maintaining, and licensing access to software applications delivered via the internet on a software-as-a-service basis;

WHEREAS, Client desires to subscribe to and use Provider's software services as described herein, and Provider desires to make such services available to Client, each on the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants, representations, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

1.1 **"Authorized Users"** means Client's employees, contractors, and agents who are authorized by Client to access and use the Services under the rights granted to Client pursuant to this Agreement.

1.2 **"Client Data"** means all data, information, and content submitted, uploaded, transmitted, or otherwise made available by Client or its Authorized Users in connection with the Services.

1.3 **"Documentation"** means Provider's user manuals, technical specifications, and other written materials relating to the Services, as updated from time to time.

1.4 **"Services"** means the cloud-based software application(s) and associated services made available by Provider via the internet and as more fully described in the applicable Order Form.

1.5 **"Order Form"** means any order document executed by the parties that references this Agreement and sets forth the specific Services, subscription fees, and other commercial terms.

1.6 **"Subscription Term"** means the period during which Client has agreed to subscribe to the Services, as specified in the applicable Order Form.

2. GRANT OF LICENSE AND ACCESS

2.1 **License Grant.** Subject to Client's compliance with the terms and conditions of this Agreement and timely payment of all applicable fees, Provider hereby grants to Client a limited, non-exclusive, non-transferable, non-sublicensable right during the Subscription Term to: (a) access and use the Services solely for Client's internal business purposes; and (b) permit Authorized Users to access and use the Services in accordance with this Agreement.

2.2 **Restrictions.** Client shall not, and shall ensure that its Authorized Users do not: (a) copy, modify, adapt, or create derivative works of the Services or Documentation; (b) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of the Services; (c) sublicense, sell, resell, transfer, assign, or otherwise commercially exploit or make available the Services to any third party; (d) use the Services to build a competitive product or service; (e) use the Services in violation of any applicable law or regulation; or (f) remove, alter, or obscure any proprietary notices on the Services.

2.3 **Authorized Users.** Client is responsible for all acts and omissions of its Authorized Users. Client shall ensure that each Authorized User complies with the terms of this Agreement and shall promptly notify Provider of any unauthorized use of or access to the Services.

3. PAYMENT TERMS

3.1 **Fees.** Client shall pay to Provider the subscription fees set forth in the applicable Order Form ("Fees"). All Fees are quoted and payable in United States Dollars unless otherwise specified in the Order Form.

3.2 **Invoicing and Payment.** Provider shall issue invoices to Client in accordance with the billing schedule set forth in the applicable Order Form. Client shall pay each undisputed invoice in full within thirty (30) days of the invoice date ("Net 30"). Payment shall be made by wire transfer, ACH, or such other method as the parties may agree in writing.

3.3 **Late Payments.** Without prejudice to any other rights or remedies available to Provider, if Client fails to pay any undisputed amount by the due date, Provider may charge interest on the overdue amount at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is lower, from the date such payment was due until the date of actual payment.

3.4 **Taxes.** All Fees are exclusive of any applicable taxes, levies, duties, or similar governmental charges, including without limitation value-added taxes, sales taxes, or withholding taxes. Client is responsible for paying all such taxes, excluding taxes based solely on Provider's net income.

3.5 **Fee Disputes.** Client shall notify Provider in writing of any disputed invoice amount within fifteen (15) days of receipt of the invoice. The parties shall work in good faith to resolve any such dispute. Client shall pay all undisputed amounts by the applicable due date.

4. AUTO-RENEWAL

4.1 **Automatic Renewal.** Unless either party provides written notice of non-renewal to the other party no later than thirty (30) days prior to the expiration of the then-current Subscription Term, the Agreement shall automatically renew for successive periods equal to the initial Subscription Term or one (1) year, whichever is shorter (each, a "Renewal Term"), on the same terms and conditions, subject to any adjustments to Fees as provided herein.

4.2 **Fee Adjustments upon Renewal.** Provider may adjust the Fees applicable to any Renewal Term upon not less than sixty (60) days' prior written notice to Client before the commencement of such Renewal Term. If Client objects to such adjustment, Client may elect not to renew by providing written notice of non-renewal within fifteen (15) days of receipt of Provider's notice.

5. DATA OWNERSHIP AND PRIVACY

5.1 **Client Data Ownership.** As between the parties, Client retains all right, title, and interest in and to all Client Data. Provider acquires no ownership interest in Client Data. Client hereby grants to Provider a limited, non-exclusive, worldwide license to access, use, process, copy, transmit, and display Client Data solely to the extent necessary to provide the Services to Client under this Agreement.

5.2 **Data Processing.** To the extent the Services involve the processing of personal data subject to applicable data protection laws, the parties shall enter into a separate Data Processing Agreement ("DPA"), which shall be incorporated herein by reference. In the event of any conflict between the DPA and this Agreement with respect to data processing matters, the DPA shall control.

5.3 **Data Export and Return.** Upon Client's written request at any time during the Subscription Term, Provider shall make Client Data available for export by Client in a commonly used, machine-readable format. Upon expiration or termination of this Agreement, Provider shall, at Client's election, return or securely delete all Client Data within sixty (60) days, subject to any retention obligations imposed by applicable law.

5.4 **Anonymized Data.** Notwithstanding Section 5.1, Provider may collect and use aggregated, de-identified, and anonymized data derived from Client's use of the Services, provided such data does not identify Client or any individual, for purposes of improving the Services, conducting research, and generating industry benchmarks.

6. INTELLECTUAL PROPERTY

6.1 **Provider IP.** As between the parties, Provider owns and retains all right, title, and interest in and to the Services, Documentation, Provider's Confidential Information, and all underlying technology, software, algorithms, methodologies, know-how, and intellectual property rights therein (collectively, "Provider IP"). No rights in Provider IP are granted to Client except as expressly set forth herein.

6.2 **Feedback.** If Client or any Authorized User provides Provider with suggestions, feedback, or recommendations regarding the Services ("Feedback"), Client hereby assigns to Provider all right, title, and interest in and to such Feedback, and Provider may use such Feedback without restriction or obligation to Client.

7. CONFIDENTIALITY

7.1 **Confidential Information.** Each party ("Disclosing Party") may disclose to the other party ("Receiving Party") information that is marked as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure ("Confidential Information"). Confidential Information includes, without limitation, the terms of this Agreement, Client Data, Provider's technology and software, pricing, and each party's business plans and strategies.

7.2 **Obligations.** The Receiving Party shall: (a) hold all Confidential Information of the Disclosing Party in strict confidence; (b) not disclose such Confidential Information to any third party without the Disclosing Party's prior written consent, except to its employees, directors, contractors, and advisors who have a need to know and are bound by confidentiality obligations at least as protective as those herein; and (c) use the Confidential Information solely for the purposes of this Agreement.

7.3 **Exclusions.** The obligations in Section 7.2 shall not apply to information that: (a) is or becomes publicly available through no act or omission of the Receiving Party; (b) was rightfully in the Receiving Party's possession prior to disclosure; (c) is rightfully received from a third party without restriction; or (d) is independently developed by the Receiving Party without use of the Confidential Information.

7.4 **Duration.** The obligations of confidentiality set forth in this Section 7 shall survive for a period of three (3) years following the expiration or termination of this Agreement.

8. WARRANTIES AND DISCLAIMERS

8.1 **Provider Warranties.** Provider warrants that: (a) the Services will perform materially in accordance with the Documentation during the Subscription Term; (b) Provider will implement reasonable and appropriate technical and organizational security measures to protect Client Data against unauthorized access or disclosure; and (c) Provider has the right to grant the licenses granted herein.

8.2 **Disclaimer.** EXCEPT AS EXPRESSLY SET FORTH IN SECTION 8.1, THE SERVICES AND DOCUMENTATION ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTY OF ANY KIND. PROVIDER EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING OR USAGE OF TRADE. PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS.

9. INDEMNIFICATION

9.1 **Indemnification by Provider.** Provider shall indemnify, defend, and hold harmless Client and its officers, directors, employees, and agents from and against any third-party claims, actions, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) any allegation that the Services, as provided by Provider and used in accordance with this Agreement, infringe or misappropriate any third party's intellectual property rights; or (b) Provider's gross negligence or willful misconduct.

9.2 **Indemnification by Client.** Client shall indemnify, defend, and hold harmless Provider and its officers, directors, employees, and agents from and against any third-party claims, actions, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Client's use of the Services in violation of this Agreement or applicable law; (b) Client Data, including any claim that Client Data infringes a third party's rights; or (c) Client's gross negligence or willful misconduct.

9.3 **Indemnification Procedure.** The indemnified party shall promptly notify the indemnifying party in writing of any claim for which indemnification is sought, give the indemnifying party sole control over the defense and settlement of such claim, and provide reasonable cooperation. The indemnifying party may not settle any claim that imposes any obligation, restriction, or liability on the indemnified party without the indemnified party's prior written consent.

10. LIMITATION OF LIABILITY

10.1 **Exclusion of Consequential Damages.** TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR BUSINESS INTERRUPTION, HOWEVER CAUSED AND REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10.2 **Liability Cap.** TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EACH PARTY'S TOTAL CUMULATIVE LIABILITY TO THE OTHER PARTY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO PROVIDER DURING THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

10.3 **Exceptions.** The limitations set forth in Sections 10.1 and 10.2 shall not apply to: (a) a party's indemnification obligations under Section 9; (b) either party's liability for death or personal injury caused by its negligence; (c) either party's liability for fraud or fraudulent misrepresentation; or (d) Client's payment obligations.

11. TERM AND TERMINATION

11.1 **Term.** This Agreement shall commence on the Effective Date and shall continue for the initial Subscription Term specified in the applicable Order Form, unless earlier terminated pursuant to this Section 11, and shall automatically renew as set forth in Section 4.

11.2 **Termination for Convenience.** Either party may terminate this Agreement for any reason or no reason upon thirty (30) days' prior written notice to the other party. In the event of termination by Client for convenience, Client shall remain liable for all Fees accrued through the end of the then-current Subscription Term.

11.3 **Termination for Cause.** Either party may terminate this Agreement immediately upon written notice if: (a) the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice describing the breach in reasonable detail; or (b) the other party becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy, liquidation, or similar proceedings.

11.4 **Effect of Termination.** Upon expiration or termination of this Agreement: (a) all licenses granted hereunder shall immediately terminate; (b) each party shall promptly return or destroy all Confidential Information of the other party; (c) Provider shall comply with the data return/deletion obligations set forth in Section 5.3; and (d) all accrued payment obligations shall survive.

11.5 **Survival.** The following provisions shall survive any expiration or termination of this Agreement: Sections 1, 5.4, 6, 7 (for the applicable period), 8.2, 9, 10, 11.4, 11.5, and 12.

12. GENERAL PROVISIONS

12.1 **Governing Law; Dispute Resolution.** This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law provisions. Any dispute arising out of or relating to this Agreement that cannot be resolved through good-faith negotiation shall be submitted to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules.

12.2 **Entire Agreement.** This Agreement, together with all Order Forms and any DPA, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous negotiations, representations, warranties, and agreements, whether oral or written.

12.3 **Amendments.** This Agreement may not be amended or modified except by a written instrument signed by authorized representatives of both parties.

12.4 **Waiver.** No failure or delay by either party in exercising any right, power, or remedy shall operate as a waiver thereof. No waiver of any provision shall be effective unless in writing and signed by the waiving party.

12.5 **Severability.** If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force and effect.

12.6 **Assignment.** Neither party may assign this Agreement or any rights or obligations hereunder without the other party's prior written consent, not to be unreasonably withheld or delayed; provided, however, that either party may assign this Agreement without consent to a successor in connection with a merger, acquisition, or sale of all or substantially all of such party's assets.

12.7 **Force Majeure.** Neither party shall be liable for any failure or delay in performance to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disasters, government actions, war, terrorism, labor disputes, or internet outages.

12.8 **Notices.** All notices required or permitted under this Agreement shall be in writing and shall be deemed delivered when: (a) delivered personally; (b) sent by internationally recognized overnight courier; or (c) sent by email with confirmed receipt to the addresses specified in the applicable Order Form.

12.9 **Counterparts.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation	**ClientCo Ltd.**
By: ________________________________	By: ________________________________
Name: ______________________________	Name: ______________________________
Title: _______________________________	Title: _______________________________
Date: _______________________________	Date: _______________________________

---CONTRACT_END---

---CONTRACT_START---

CONTRACT TYPE: Non-Disclosure Agreement (Mutual)

RISK PROFILE: STANDARD — BALANCED BASELINE

MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: [____________], 2024

This Mutual Non-Disclosure Agreement (hereinafter "Agreement") is entered into as of the Effective Date set forth above by and between **ACME Corporation**, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 ("ACME"), and **ClientCo Ltd.**, a company organized and existing under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom ("ClientCo"). ACME and ClientCo are hereinafter referred to individually as a "Party" and collectively as the "Parties."

WHEREAS, the Parties desire to explore a potential business relationship and, in connection therewith, each Party may disclose to the other certain proprietary and confidential information; and

WHEREAS, the Parties desire to protect such confidential information from unauthorized disclosure and use;

NOW, THEREFORE, in consideration of the mutual obligations set forth herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 For purposes of this Agreement, "Confidential Information" means any and all information or data that has or could have commercial value or other utility in the business in which the Disclosing Party is engaged, that is disclosed or made available by one Party (the "Disclosing Party") to the other Party (the "Receiving Party") in connection with the Purpose (as defined herein), whether disclosed orally, in writing, electronically, visually, or in any other form, and whether or not marked or identified as "confidential" at the time of disclosure.

1.2 Without limiting the generality of the foregoing, Confidential Information includes, but is not limited to: (a) technical information, including inventions, developments, discoveries, improvements, processes, formulae, software code, algorithms, data, technical drawings, schematics, designs, know-how, trade secrets, and research results; (b) business information, including business plans, financial data, forecasts, pricing structures, marketing strategies, customer lists, supplier information, and partnership arrangements; (c) the existence and terms of this Agreement; and (d) any analyses, reports, compilations, or summaries prepared by or for the Receiving Party that contain, reflect, or are based upon Confidential Information.

1.3 **"Purpose"** means the evaluation, discussion, and potential negotiation of a business relationship between the Parties, including without limitation the potential licensing, partnership, acquisition, or commercial collaboration as the Parties may agree.

2. OBLIGATIONS OF THE RECEIVING PARTY

2.1 The Receiving Party agrees to: (a) hold all Confidential Information of the Disclosing Party in strict confidence, using at least the same degree of care it uses to protect its own confidential information of similar nature, but in no event less than reasonable care; (b) not disclose, transfer, publish, or otherwise make available any Confidential Information of the Disclosing Party to any third party without the prior written consent of the Disclosing Party; (c) limit access to the Confidential Information to those of the Receiving Party's employees, directors, officers, contractors, agents, and advisors (collectively, "Representatives") who have a legitimate need to know such information in connection with the Purpose, and who are bound by written obligations of confidentiality and non-use no less restrictive than those contained herein; and (d) use the Confidential Information of the Disclosing Party solely for the Purpose and for no other purpose whatsoever.

2.2 The Receiving Party shall be responsible for any breach of this Agreement by its Representatives and shall take all reasonably necessary measures to prevent any unauthorized disclosure or use of the Disclosing Party's Confidential Information.

2.3 Each Party shall promptly notify the other in writing upon discovery of any unauthorized use or disclosure of the other Party's Confidential Information, and shall cooperate fully with the Disclosing Party to regain possession of the Confidential Information and prevent its further unauthorized use or disclosure.

3. EXCLUSIONS FROM CONFIDENTIALITY

3.1 The obligations of confidentiality set forth in Section 2 shall not apply to any information that the Receiving Party can demonstrate by competent written evidence:

(a) was, at the time of disclosure, already in the public domain or thereafter enters the public domain through no act or omission of the Receiving Party or its Representatives;

(b) was rightfully in the Receiving Party's possession, free from any obligation of confidentiality, prior to the Disclosing Party's disclosure, as evidenced by written records predating such disclosure;

(c) is rightfully received by the Receiving Party from a third party without restriction on disclosure;

(d) is independently developed by the Receiving Party without reference to or use of any Confidential Information of the Disclosing Party; or

(e) is required to be disclosed by operation of law, court order, or other governmental authority, provided that the Receiving Party: (i) provides the Disclosing Party with prompt written notice of such requirement, to the extent permitted by law; (ii) cooperates, at the Disclosing Party's expense, with any effort by the Disclosing Party to seek a protective order or other appropriate relief; and (iii) discloses only that portion of the Confidential Information that is legally required to be disclosed.

4. TERM

4.1 This Agreement shall commence on the Effective Date and shall continue for a period of two (2) years (the "Term"), unless earlier terminated by either Party upon thirty (30) days' prior written notice to the other Party.

4.2 Notwithstanding the expiration or earlier termination of this Agreement, the obligations of confidentiality and non-use set forth herein shall continue to apply to any Confidential Information disclosed during the Term for a period of two (2) years following expiration or termination of this Agreement, except with respect to trade secrets, which shall remain subject to the obligations of confidentiality for so long as such information constitutes a trade secret under applicable law.

5. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

5.1 Upon the written request of the Disclosing Party at any time, or upon expiration or termination of this Agreement, the Receiving Party shall, at the Disclosing Party's election, promptly: (a) return to the Disclosing Party all tangible materials and documents (including all copies and derivatives thereof) embodying or containing Confidential Information; or (b) permanently destroy all such materials and documents and certify in writing to the Disclosing Party that such destruction has been completed.

5.2 Notwithstanding the foregoing, the Receiving Party may retain: (a) copies of Confidential Information held in electronic back-up archives, provided that such archived copies are overwritten in the ordinary course of the Receiving Party's back-up rotation schedule; and (b) Confidential Information to the extent required to be retained by applicable law or regulation, subject to the continuing confidentiality obligations of this Agreement.

5.3 The return or destruction of Confidential Information shall not release the Receiving Party from its obligations under this Agreement.

6. NO LICENSE OR OBLIGATION

6.1 Nothing in this Agreement shall be construed as granting the Receiving Party any right, title, license, or interest in or to any Confidential Information of the Disclosing Party, whether by implication, estoppel, or otherwise.

6.2 Nothing in this Agreement shall be construed to obligate either Party to enter into any business relationship, contract, or further agreement, or to proceed with the Purpose. Each Party reserves the right to terminate discussions at any time without obligation.

7. REMEDIES FOR BREACH

7.1 Each Party acknowledges and agrees that: (a) its breach of any provision of this Agreement would cause irreparable injury to the Disclosing Party for which monetary damages alone would be an inadequate remedy; and (b) the Disclosing Party shall therefore be entitled, in addition to any other remedies available at law or in equity, to seek specific performance and injunctive or other equitable relief without the requirement of posting a bond or other security.

7.2 Nothing in this Section 7 shall limit or otherwise affect the rights of the non-breaching party to pursue any other remedy available at law or in equity, including the recovery of monetary damages.

8. GENERAL PROVISIONS

8.1 **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. Any dispute arising under this Agreement shall be subject to the exclusive jurisdiction of the courts located in New York County, New York, and each Party consents to personal jurisdiction in such courts.

8.2 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous discussions, representations, and agreements relating to its subject matter.

8.3 **Amendments.** This Agreement may be amended only by a written instrument duly signed by authorized representatives of both Parties.

8.4 **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, and the validity and enforceability of all other provisions shall remain in full force and effect.

8.5 **Counterparts and Electronic Signatures.** This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original and all of which together shall constitute one and the same agreement.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation	**ClientCo Ltd.**

By: ________________________________	By: ________________________________
Name: ______________________________	Name: ______________________________
Title: _______________________________	Title: _______________________________
Date: _______________________________	Date: _______________________________

---CONTRACT_END---

---CONTRACT_START---

CONTRACT TYPE: Consulting Services Agreement

RISK PROFILE: STANDARD — BALANCED BASELINE

CONSULTING SERVICES AGREEMENT

Effective Date: [____________], 2024

This Consulting Services Agreement (hereinafter "Agreement") is entered into as of the Effective Date set forth above by and between **ACME Corporation**, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 (hereinafter "Consultant"), and **ClientCo Ltd.**, a company organized and existing under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom (hereinafter "Client"). Each of the Consultant and Client is referred to herein individually as a "Party" and collectively as the "Parties."

WHEREAS, Client desires to retain Consultant to provide certain consulting services as described herein, and Consultant desires to provide such services to Client, each on the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. SCOPE OF WORK

1.1 **Services.** Consultant agrees to provide to Client the consulting services (the "Services") described in one or more statements of work executed by the Parties from time to time (each, a "Statement of Work" or "SOW"), each of which shall be incorporated herein by reference upon execution. Each SOW shall set forth, at minimum: (a) a detailed description of the Services to be performed; (b) the applicable deliverables and acceptance criteria; (c) the project timeline and milestones; (d) the applicable fees and payment schedule; and (e) the names of any key personnel assigned to the engagement.

1.2 **Performance Standard.** Consultant shall perform the Services: (a) in a professional and workmanlike manner consistent with industry standards; (b) in compliance with all applicable laws, regulations, and professional standards; and (c) in accordance with the specifications and requirements set forth in the applicable SOW.

1.3 **Changes to Scope.** Any changes to the scope of Services described in an SOW must be agreed upon by the Parties in a written change order signed by authorized representatives of both Parties ("Change Order"). Neither Party shall be bound by any oral representation or agreement purporting to modify the scope of an SOW.

1.4 **Client Cooperation.** Client shall provide Consultant with timely access to Client's personnel, systems, data, facilities, and other resources reasonably necessary for Consultant to perform the Services. Client acknowledges that Consultant's ability to perform the Services may be affected by Client's failure to provide such cooperation.

2. PAYMENT TERMS

2.1 **Fees.** Client shall pay Consultant the fees set forth in each applicable SOW. Unless otherwise specified in the applicable SOW, fees shall be invoiced monthly in arrears based on the Services performed during the preceding calendar month.

2.2 **Payment.** Client shall pay each undisputed invoice within thirty (30) days of the date of the invoice ("Net 30"). All payments shall be made in United States Dollars by wire transfer, ACH, or such other method as the Parties may agree. Any amounts not paid when due shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is lower.

2.3 **Expenses.** Client shall reimburse Consultant for all reasonable and pre-approved out-of-pocket expenses incurred by Consultant in connection with the performance of the Services, including without limitation travel, lodging, and meals, provided such expenses are documented and submitted with appropriate receipts.

2.4 **Taxes.** All fees are exclusive of applicable taxes. Each Party shall be responsible for its own tax obligations arising from the receipt of payments under this Agreement.

3. INTELLECTUAL PROPERTY OWNERSHIP

3.1 **Work Product Ownership.** As between the Parties, Client shall own all right, title, and interest, including all intellectual property rights, in and to all deliverables, work product, inventions, developments, improvements, and materials developed or created by Consultant specifically for Client in the performance of the Services (collectively, "Work Product"). Consultant hereby irrevocably assigns to Client all such rights in and to the Work Product, and agrees to execute any further instruments reasonably necessary to evidence or perfect such assignment.

3.2 **Pre-Existing IP.** Notwithstanding Section 3.1, Consultant retains all right, title, and interest in and to its pre-existing proprietary tools, methodologies, frameworks, know-how, and intellectual property that were developed independently of this Agreement and not specifically created for Client ("Pre-Existing IP"). To the extent any Pre-Existing IP is incorporated into any Work Product, Consultant hereby grants Client a non-exclusive, perpetual, irrevocable, worldwide, royalty-free license to use such Pre-Existing IP solely as incorporated in the applicable Work Product.

3.3 **License to Client Materials.** Client hereby grants to Consultant a limited, non-exclusive, non-transferable license to use Client's data, materials, and intellectual property solely to the extent necessary for Consultant to perform the Services.

4. CONFIDENTIALITY

4.1 **Obligations.** In connection with this Agreement, each Party may disclose Confidential Information to the other. The Receiving Party shall: (a) maintain the confidentiality of the Disclosing Party's Confidential Information; (b) not disclose such Confidential Information to third parties without the Disclosing Party's prior written consent; and (c) use such Confidential Information only for purposes of this Agreement.

4.2 **"Confidential Information"** means all non-public information disclosed by a Party relating to its business, technology, finances, or operations, including Client Data, Consultant's methodologies, and the terms of this Agreement.

4.3 **Duration.** Confidentiality obligations shall survive expiration or termination of this Agreement for a period of three (3) years.

5. INDEPENDENT CONTRACTOR STATUS

5.1 Consultant is an independent contractor and not an employee, partner, joint venturer, or agent of Client. Nothing in this Agreement shall be construed to create an employment relationship between Consultant (or any of Consultant's employees) and Client.

5.2 Consultant shall be solely responsible for: (a) all taxes, including without limitation income taxes, self-employment taxes, and payroll taxes, arising from compensation received under this Agreement; (b) worker's compensation, disability, and unemployment insurance; and (c) all employee benefits for Consultant's personnel.

5.3 Consultant's personnel assigned to perform Services for Client shall remain employees or contractors of Consultant and shall not be deemed employees of Client for any purpose. Client shall not direct or control the manner or means by which Consultant performs the Services, but only the results to be achieved.

6. WARRANTY OF SERVICES

6.1 Consultant warrants that: (a) the Services will be performed in a professional and workmanlike manner consistent with industry standards; (b) Consultant has the right to enter into this Agreement and to grant the rights granted herein; (c) the Services and Work Product will not, to Consultant's knowledge, infringe or misappropriate any third party's intellectual property rights; and (d) Consultant will comply with all applicable laws and regulations in performing the Services.

6.2 In the event of any breach of the warranties set forth in Section 6.1, Client's sole and exclusive remedy shall be for Consultant to re-perform the non-conforming Services at no additional charge, or if re-performance is not reasonably practicable, to refund fees paid for the non-conforming Services.

7. LIMITATION OF LIABILITY

7.1 **Exclusion of Consequential Damages.** IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

7.2 **Aggregate Liability Cap.** EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL FEES PAID BY CLIENT TO CONSULTANT IN THE SIX (6) MONTHS PRECEDING THE CLAIM; OR (B) ONE HUNDRED THOUSAND UNITED STATES DOLLARS (USD $100,000).

7.3 **Exceptions.** The limitations in this Section 7 shall not apply to: (a) a Party's obligation to indemnify the other against third-party claims; (b) liability arising from fraud or willful misconduct; (c) liability for death or personal injury; or (d) Client's payment obligations.

8. TERM AND TERMINATION

8.1 **Term.** This Agreement shall commence on the Effective Date and shall continue until all active SOWs have been completed or earlier terminated, unless otherwise terminated pursuant to this Section 8.

8.2 **Termination for Convenience.** Either Party may terminate this Agreement or any SOW for any reason or no reason upon fourteen (14) days' prior written notice to the other Party.

8.3 **Termination for Cause.** Either Party may terminate this Agreement or any SOW upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within fourteen (14) days after receipt of written notice thereof.

8.4 **Effect of Termination.** Upon termination: (a) Consultant shall deliver to Client all completed and in-progress Work Product; (b) Client shall pay Consultant for all Services performed through the effective date of termination; and (c) Client shall reimburse Consultant for all non-cancellable commitments made prior to notice of termination.

9. GENERAL PROVISIONS

9.1 **Governing Law.** This Agreement shall be governed by the laws of California, without regard to conflict of laws principles.

9.2 **Entire Agreement; Amendments.** This Agreement and all executed SOWs constitute the entire agreement and may only be amended in writing signed by both Parties.

9.3 **Counterparts; Electronic Signatures.** This Agreement may be executed in counterparts and by electronic signature.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation (Consultant)	**ClientCo Ltd. (Client)**
By: ________________________________	By: ________________________________
Name: ______________________________	Name: ______________________________
Title: _______________________________	Title: _______________________________
Date: _______________________________	Date: _______________________________

---CONTRACT_END---

---CONTRACT_START---

CONTRACT TYPE: Employment Contract

RISK PROFILE: STANDARD — BALANCED BASELINE

EMPLOYMENT AGREEMENT

Effective Date: [____________], 2024

This Employment Agreement (hereinafter "Agreement") is entered into as of the Effective Date set forth above by and between **ACME Corporation**, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 (hereinafter "Company"), and **[Employee Name]**, an individual residing at [Employee Address] (hereinafter "Employee").

WHEREAS, Company desires to employ Employee, and Employee desires to accept employment with Company, on the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. POSITION AND DUTIES

1.1 **Position.** Company agrees to employ Employee in the position of [Job Title], reporting to [Reporting Manager / Title]. Employee's primary place of work shall be [Location / Remote].

1.2 **Duties.** Employee shall perform the duties and responsibilities customarily associated with Employee's position, as well as such other duties as may be reasonably assigned by Company from time to time. Employee shall devote Employee's full business time, attention, skill, and effort to the performance of Employee's duties, and shall not engage in any other employment or business activity that conflicts with Employee's obligations to Company without prior written approval.

1.3 **Policies.** Employee shall comply with all of Company's policies, rules, and regulations as in effect from time to time, including without limitation Company's code of conduct, information security policies, and acceptable use policies.

1.4 **Start Date.** Employee's employment with Company shall commence on [Start Date] (the "Start Date").

2. COMPENSATION

2.1 **Base Salary.** Company shall pay Employee an annual base salary of [$ Amount] ("Base Salary"), payable in accordance with Company's standard payroll schedule, less applicable withholdings and deductions. The Base Salary shall be reviewed annually by Company in connection with its standard compensation review process.

2.2 **Incentive Compensation.** Employee shall be eligible to participate in Company's annual performance bonus plan, with a target bonus of [%] of Base Salary, subject to the terms and conditions of such plan as in effect from time to time. Payment of any bonus is contingent on Employee's continued employment through the applicable payment date and achievement of applicable performance targets.

2.3 **Equity.** Subject to the approval of Company's Board of Directors, Employee shall be granted an option to purchase [# Shares] shares of Company's common stock at an exercise price equal to the fair market value on the grant date, pursuant to Company's equity incentive plan and standard form of option agreement.

3. BENEFITS

3.1 Employee shall be eligible to participate in Company's employee benefit plans and programs as are made available to similarly situated employees of Company from time to time, including health, dental, and vision insurance; life and disability insurance; 401(k) retirement plan; paid vacation and sick leave in accordance with Company's policies; and any other benefits generally available to employees.

3.2 Company reserves the right to modify, amend, suspend, or terminate any benefit plan or program at any time in its sole discretion, subject to applicable law.

4. AT-WILL EMPLOYMENT AND TERMINATION

4.1 **At-Will Employment.** Employee's employment with Company is and shall be "at-will," meaning that either Party may terminate the employment relationship at any time, with or without cause, and with or without advance notice, subject to the notice provisions set forth below.

4.2 **Notice of Termination.** Company agrees to provide Employee with at least thirty (30) days' advance written notice of termination without cause, or pay in lieu of such notice at Company's election. Employee agrees to provide Company with at least thirty (30) days' advance written notice of voluntary resignation.

4.3 **Termination for Cause.** Company may terminate Employee's employment immediately, without notice and without severance, for Cause. "Cause" means: (a) Employee's conviction of, or plea of guilty or no contest to, a felony or crime of moral turpitude; (b) Employee's willful misconduct or gross negligence in the performance of Employee's duties; (c) Employee's material breach of this Agreement that is not cured within fifteen (15) days of written notice; (d) Employee's fraud, dishonesty, or embezzlement; or (e) Employee's material violation of Company's written policies.

4.4 **Final Pay.** Upon termination, Company shall pay Employee all earned and unpaid compensation through the termination date in accordance with applicable law.

5. NON-COMPETE AGREEMENT

5.1 **Restriction.** Employee agrees that during Employee's employment and for a period of six (6) months immediately following the termination of Employee's employment for any reason ("Restricted Period"), Employee shall not, directly or indirectly, engage in, own, manage, operate, control, be employed by, provide services to, participate in, or be connected with any business or enterprise that is engaged in the development, sale, or marketing of products or services that directly compete with those of Company (a "Competing Business") within the geographic territory in which Company actively conducts its business operations as of the date of termination (the "Territory").

5.2 **Reasonableness.** Employee acknowledges that: (a) the restrictions contained in this Section 5 are reasonable and necessary to protect Company's legitimate business interests, including its confidential information, trade secrets, customer relationships, and goodwill; (b) Company would not have entered into this Agreement absent Employee's agreement to this Section 5; and (c) Employee has had the opportunity to consult with legal counsel regarding these restrictions.

5.3 **Modification.** If any provision of this Section 5 is deemed unenforceable in any jurisdiction, the Parties authorize the applicable court to modify the restriction to the minimum extent necessary to make it enforceable.

6. NON-SOLICITATION

6.1 During the Restricted Period, Employee shall not, directly or indirectly: (a) solicit, recruit, induce, or attempt to solicit, recruit, or induce any employee or independent contractor of Company to terminate their employment or engagement with Company; (b) solicit or attempt to solicit the business of any customer or prospective customer of Company with whom Employee had material contact during the last twelve (12) months of employment, for the purpose of providing products or services competitive with those offered by Company.

7. CONFIDENTIALITY

7.1 **Obligation.** Employee agrees to hold in strict confidence all Confidential Information of Company during and after Employee's employment. "Confidential Information" means all non-public information relating to Company's business, products, services, technology, finances, customers, personnel, strategies, and operations.

7.2 **Return of Property.** Upon termination, Employee shall promptly return to Company all Company property, including all documents, materials, and electronic devices, and shall not retain any copies of any Confidential Information.

8. INTELLECTUAL PROPERTY ASSIGNMENT

8.1 **Assignment.** Employee hereby irrevocably assigns and transfers to Company all right, title, and interest in and to all inventions, works of authorship, developments, improvements, and discoveries (collectively, "Inventions") conceived, developed, or reduced to practice by Employee, solely or jointly with others, in the course of performing Employee's duties for Company or with the use of Company's time, resources, or facilities.

8.2 **Disclosure.** Employee agrees to promptly disclose all Inventions to Company and to execute all documents and instruments, and take all further actions, that Company may reasonably request to evidence, record, and perfect Company's ownership of all Inventions.

8.3 **Prior Inventions.** Employee has listed in Exhibit A all prior inventions and works in which Employee has an interest as of the Start Date. All inventions not so listed are subject to assignment under Section 8.1.

9. GOVERNING LAW

9.1 This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law provisions. Any dispute arising hereunder shall be subject to the exclusive jurisdiction of the state or federal courts located in San Francisco County, California.

9.2 **Entire Agreement.** This Agreement supersedes all prior agreements relating to Employee's employment and constitutes the entire agreement between the Parties on the subject matter hereof. Amendments must be in writing and signed by both Parties.

9.3 **Savings Clause.** If any provision is unenforceable under applicable law, it shall be modified to the minimum extent necessary for enforceability; all other provisions remain in full force.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation	**[Employee Name]**
By: ________________________________	By: ________________________________
Name: ______________________________	Name: ______________________________
Title: _______________________________	Title: _______________________________
Date: _______________________________	Date: _______________________________

---CONTRACT_END---

---CONTRACT_START---

CONTRACT TYPE: Vendor Supply Agreement

RISK PROFILE: STANDARD — BALANCED BASELINE

VENDOR SUPPLY AGREEMENT

Effective Date: [___________], 2024

This Vendor Supply Agreement (hereinafter "Agreement") is entered into as of the Effective Date set forth above by and between **ACME Corporation**, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 (hereinafter "Supplier"), and **ClientCo Ltd.**, a company organized and existing under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom (hereinafter "Buyer"). Supplier and Buyer are referred to individually as a "Party" and collectively as the "Parties."

WHEREAS, Supplier desires to supply, and Buyer desires to purchase, certain goods and/or services (the "Products") on the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. PURCHASE ORDERS

1.1 **Ordering Process.** Buyer may from time to time submit purchase orders to Supplier in writing (including by electronic means) for the Products (each, a "Purchase Order" or "PO"). Each Purchase Order shall specify: (a) the Products ordered; (b) the quantities; (c) the requested delivery date; and (d) the applicable delivery destination.

1.2 **Acceptance.** Each Purchase Order submitted by Buyer shall constitute an offer to purchase Products, and shall become binding upon Supplier's written acknowledgment or by Supplier commencing performance. Supplier shall confirm or reject each Purchase Order within five (5) business days of receipt. If Supplier fails to respond within such period, the Purchase Order shall be deemed accepted.

1.3 **Order of Precedence.** In the event of any conflict between the terms of a Purchase Order and this Agreement, the terms of this Agreement shall govern and control, except to the extent a Purchase Order expressly states that a specific term in the Purchase Order supersedes this Agreement and is signed by authorized representatives of both Parties.

1.4 **Forecasts.** Buyer may provide Supplier with rolling non-binding forecasts of anticipated purchase volumes. Such forecasts are for planning purposes only and shall not constitute binding commitments by Buyer.

2. PRICING AND PAYMENT

2.1 **Pricing.** Supplier shall supply the Products at the prices set forth in Exhibit A ("Price Schedule"). Prices shall be fixed for the initial twelve (12) months of this Agreement. Thereafter, Supplier may adjust prices upon not less than sixty (60) days' prior written notice to Buyer. Buyer may reject any price increase by terminating any outstanding Purchase Orders for affected Products within thirty (30) days of receiving notice of the price adjustment.

2.2 **Invoicing and Payment Terms.** Supplier shall invoice Buyer upon shipment of Products. Buyer shall pay each undisputed invoice within thirty (30) days of the invoice date ("Net 30") by wire transfer or such other means as the Parties may agree. All prices are exclusive of applicable sales, use, value-added, and similar taxes, which shall be set forth separately on each invoice.

2.3 **Late Payment.** Amounts not paid when due shall accrue interest at the lower of one and one-half percent (1.5%) per month or the maximum rate permitted by applicable law.

2.4 **Disputed Invoices.** Buyer shall notify Supplier in writing of any invoice dispute within fifteen (15) days of receipt. Buyer shall pay undisputed amounts on time and the Parties shall work in good faith to resolve disputes promptly.

3. DELIVERY TERMS

3.1 **Delivery.** Unless otherwise specified in a Purchase Order, all Products shall be delivered DDP (Delivered Duty Paid) to Buyer's designated delivery address, as defined in Incoterms 2020. Risk of loss and title to Products shall pass to Buyer upon delivery to Buyer's designated destination.

3.2 **Delivery Schedule.** Time is of the essence with respect to delivery dates specified in Purchase Orders. Supplier shall notify Buyer promptly in writing if Supplier anticipates any delay. Buyer may cancel any Purchase Order for which delivery will be delayed more than fifteen (15) business days beyond the specified delivery date.

3.3 **Packing and Labeling.** Supplier shall pack, label, and ship all Products in accordance with Buyer's specifications and applicable law. Supplier shall include a packing list with each shipment identifying the Purchase Order number and listing all Products and quantities shipped.

4. QUALITY STANDARDS AND INSPECTION

4.1 **Quality Standards.** All Products supplied under this Agreement shall: (a) conform to the specifications set forth in Exhibit B ("Specifications"); (b) be free from defects in materials and workmanship; (c) comply with all applicable laws, regulations, and industry standards; and (d) meet or exceed the quality standards set forth in any applicable quality agreement between the Parties.

4.2 **Inspection Rights.** Buyer shall have the right to inspect all Products within thirty (30) days of delivery ("Inspection Period"). Buyer shall notify Supplier in writing of any non-conforming Products within the Inspection Period. If Buyer fails to so notify Supplier, the Products shall be deemed accepted. Acceptance shall not limit Buyer's rights under any applicable warranty.

4.3 **Non-Conforming Products.** With respect to any Products rejected by Buyer as non-conforming, Supplier shall, at Supplier's election: (a) replace the non-conforming Products with conforming Products within a commercially reasonable time at Supplier's cost; or (b) issue a full credit or refund to Buyer for the purchase price of the non-conforming Products. Return shipping costs for non-conforming Products shall be borne by Supplier.

5. WARRANTIES

5.1 Supplier warrants that: (a) all Products shall conform to the Specifications for a period of twelve (12) months from delivery (the "Warranty Period"); (b) all Products shall be free from defects in design, materials, and workmanship; (c) Supplier has good title to all Products and that the Products are free from all liens, encumbrances, and claims; (d) the Products shall comply with all applicable laws and regulations; and (e) Supplier has the right and authority to enter into this Agreement.

5.2 These warranties are in addition to, and not in lieu of, any implied warranties under applicable law.

6. LIMITATION OF LIABILITY

6.1 **Exclusion of Consequential Damages.** IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR EXEMPLARY DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, LOSS OF BUSINESS, OR LOSS OF DATA, HOWSOEVER ARISING.

6.2 **Liability Cap.** EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO ANY INDIVIDUAL PURCHASE ORDER SHALL NOT EXCEED THE TOTAL PURCHASE PRICE PAID OR PAYABLE UNDER THAT PURCHASE ORDER. NOTWITHSTANDING THE FOREGOING, EACH PARTY'S TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS ARISING UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY BUYER DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

6.3 **Exceptions.** The limitations in this Section 6 shall not apply to: (a) either Party's indemnification obligations; (b) liability arising from fraud or willful misconduct; (c) death or personal injury; or (d) infringement of third party intellectual property rights.

7. INDEMNIFICATION

7.1 **By Supplier.** Supplier shall indemnify, defend, and hold harmless Buyer and its officers, directors, and employees against all third-party claims, losses, and expenses arising out of: (a) Supplier's breach of this Agreement; (b) any defect in the Products; (c) infringement of a third party's intellectual property rights by the Products; or (d) Supplier's gross negligence or willful misconduct.

7.2 **By Buyer.** Buyer shall indemnify, defend, and hold harmless Supplier and its officers, directors, and employees against all third-party claims arising out of: (a) Buyer's misuse of the Products; (b) Buyer's breach of this Agreement; or (c) Buyer's gross negligence or willful misconduct.

8. TERMINATION FOR CAUSE

8.1 Either Party may terminate this Agreement upon written notice if the other Party: (a) materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice specifying the breach; (b) becomes insolvent or subject to bankruptcy proceedings; or (c) ceases to conduct business in the ordinary course.

8.2 Either Party may terminate this Agreement for convenience upon sixty (60) days' prior written notice. Termination for convenience shall not affect any Purchase Orders already accepted prior to receipt of such notice.

9. FORCE MAJEURE

9.1 Neither Party shall be liable for any failure or delay in the performance of its obligations under this Agreement (other than payment obligations) to the extent such failure or delay is caused by circumstances beyond such Party's reasonable control, including without limitation acts of God, natural disasters, earthquake, flood, fire, pandemic, epidemic, war, terrorism, civil unrest, governmental actions, embargoes, or labor strikes (each, a "Force Majeure Event").

9.2 The Party affected by a Force Majeure Event shall: (a) promptly notify the other Party of the Force Majeure Event and its expected duration; (b) use commercially reasonable efforts to mitigate the effects of and overcome the Force Majeure Event; and (c) resume performance as soon as reasonably practicable following cessation of the Force Majeure Event. If a Force Majeure Event continues for more than sixty (60) consecutive days, either Party may terminate the affected Purchase Orders or this Agreement upon written notice.

10. CONFIDENTIALITY

10.1 Each Party shall maintain in confidence all Confidential Information received from the other Party, using at least the same care as used to protect its own confidential information, but not less than reasonable care. "Confidential Information" includes pricing, specifications, forecasts, business plans, and all non-public information disclosed under this Agreement.

10.2 Confidentiality obligations shall survive for three (3) years following expiration or termination of this Agreement.

11. GOVERNING LAW AND GENERAL PROVISIONS

11.1 **Governing Law.** This Agreement shall be governed by the laws of the State of California, without regard to conflict of law principles.

11.2 **Entire Agreement.** This Agreement, together with all Purchase Orders, Exhibit A, and Exhibit B, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions and agreements.

11.3 **Severability; Amendment.** If any provision is unenforceable, it shall be modified to the minimum extent necessary. Amendments must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation (Supplier)	**ClientCo Ltd. (Buyer)**
By: ________________________________	By: ________________________________
Name: ______________________________	Name: ______________________________
Title: _______________________________	Title: _______________________________
Date: _______________________________	Date: _______________________________

---CONTRACT_END---

---CONTRACT_START---

CONTRACT TYPE: Data Processing Agreement (GDPR Compliant)

RISK PROFILE: STANDARD — BALANCED BASELINE

DATA PROCESSING AGREEMENT

(GDPR COMPLIANT — PURSUANT TO ARTICLE 28 OF REGULATION (EU) 2016/679)
Effective Date: [____________], 2024

This Data Processing Agreement (hereinafter "DPA" or "Agreement") is entered into as of the Effective Date set forth above by and between **ClientCo Ltd.**, a company organized and existing under the laws of England and Wales, with its registered office at 25 Business Park, London, EC2A 1AA, United Kingdom (hereinafter "Controller"), and **ACME Corporation**, a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 (hereinafter "Processor"). This DPA is incorporated into and forms part of the SaaS Subscription Agreement or such other master agreement as may be in force between the Parties (the "Principal Agreement").

WHEREAS, the Processor provides services to the Controller pursuant to the Principal Agreement; and WHEREAS, in the course of providing such services, the Processor may process Personal Data on behalf of the Controller; and WHEREAS, the Parties wish to set forth their respective obligations with respect to the processing of such Personal Data in accordance with applicable Data Protection Laws;

NOW, THEREFORE, in consideration of the mutual obligations set forth herein, the Parties agree as follows:

1. DEFINITIONS

1.1 **"Data Protection Laws"** means all applicable laws and regulations relating to the processing, privacy, and use of Personal Data as applicable to the Parties under this DPA, including without limitation the General Data Protection Regulation (EU) 2016/679 ("GDPR"), the UK GDPR as defined by the Data Protection Act 2018, and any national implementing legislation, as amended from time to time.

1.2 **"Controller"** means the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of Personal Data.

1.3 **"Processor"** means a natural or legal person, public authority, agency, or other body which processes Personal Data on behalf of the Controller.

1.4 **"Personal Data"** means any information relating to an identified or identifiable natural person ("Data Subject") as defined in Article 4(1) of the GDPR, including any data processed by Processor on behalf of Controller in connection with the Principal Agreement.

1.5 **"Processing"** means any operation or set of operations performed on Personal Data, as defined in Article 4(2) of the GDPR, whether or not by automated means.

1.6 **"Personal Data Breach"** means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data transmitted, stored, or otherwise processed.

1.7 **"Sub-processor"** means any Processor engaged by the Processor who agrees to receive from the Processor Personal Data for processing on behalf of the Controller.

1.8 **"Data Subject Rights"** means the rights of Data Subjects under Data Protection Laws, including the rights of access, rectification, erasure, restriction of processing, data portability, and the right to object to processing.

2. SCOPE OF PROCESSING

2.1 **Subject Matter and Duration.** The Processor shall process Personal Data on behalf of the Controller for the duration of the Principal Agreement and in accordance with the instructions of the Controller as set forth in this DPA and the Principal Agreement.

2.2 **Categories of Data.** The categories of Personal Data processed under this DPA are set forth in Annex I to this DPA and include, but may not be limited to: (a) identification data (name, email address, username); (b) contact details; (c) professional information; (d) usage data and log data generated through the use of the Services; and (e) such other categories as the Controller may upload or transmit through the Services.

2.3 **Categories of Data Subjects.** The Data Subjects are the Controller's employees, contractors, customers, and other individuals whose Personal Data is processed through the Services, as set forth in Annex I.

2.4 **Purposes of Processing.** The Processor shall process Personal Data solely for the purpose of providing the Services under the Principal Agreement and as otherwise expressly permitted under this DPA.

3. CONTROLLER AND PROCESSOR OBLIGATIONS

3.1 **Processing on Instructions.** Processor shall process Personal Data only on the documented instructions of the Controller, as set forth in this DPA and the Principal Agreement, unless otherwise required by applicable law. In such cases, Processor shall inform the Controller of the legal requirement before processing, unless prohibited by law. Processor shall immediately inform the Controller if, in Processor's opinion, any instruction infringes applicable Data Protection Laws.

3.2 **Confidentiality of Processing.** Processor shall ensure that all persons authorized by it to process Personal Data are subject to binding obligations of confidentiality with respect to such data, whether contractual or statutory.

3.3 **Controller's Responsibilities.** Controller is responsible for: (a) ensuring that it has a lawful basis for the processing of Personal Data under applicable Data Protection Laws; (b) providing Data Subjects with any required privacy notices; (c) ensuring the quality and accuracy of Personal Data submitted to the Services; and (d) providing Processor with any instructions necessary to enable Processor to comply with its obligations under this DPA.

3.4 **Controller's Instructions.** Processor shall process Personal Data in accordance with this DPA and any further documented instructions given by Controller from time to time. Processor shall promptly notify Controller if it cannot or does not intend to comply with any such instruction.

4. DATA SUBJECT RIGHTS

4.1 **Assistance.** Processor shall, taking into account the nature of the processing, assist Controller by appropriate technical and organizational measures, insofar as reasonably possible, to fulfil Controller's obligations with respect to requests from Data Subjects exercising their Data Subject Rights under applicable Data Protection Laws, including rights of access, rectification, erasure, restriction of processing, data portability, and objection.

4.2 **Notification.** In the event Processor receives a request directly from a Data Subject regarding the Data Subject's Personal Data, Processor shall promptly forward such request to the Controller and shall not respond directly to the Data Subject without the Controller's prior written authorization, except as required by applicable law.

4.3 **Response Timeframe.** Processor shall respond to Controller's requests for assistance under this Section 4 within five (5) business days of receiving such request.

5. SECURITY MEASURES

5.1 **Technical and Organizational Measures.** Processor shall implement and maintain appropriate technical and organizational measures to protect Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access, as set forth in Annex II to this DPA. Such measures shall include, at minimum: (a) encryption of Personal Data in transit and at rest using industry-standard encryption protocols; (b) the ability to ensure ongoing confidentiality, integrity, availability, and resilience of processing systems; (c) the ability to restore the availability and access to Personal Data in a timely manner in the event of a physical or technical incident; (d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures for ensuring the security of the processing.

5.2 **Access Controls.** Processor shall implement role-based access controls to ensure that only authorized personnel have access to Personal Data, and only to the extent necessary to perform their functions.

5.3 **Updates to Security Measures.** Processor may update or modify the security measures set forth in Annex II from time to time, provided that such updates do not materially diminish the level of protection afforded to Personal Data.

6. SUB-PROCESSORS

6.1 **General Authorization.** Controller hereby grants Processor general authorization to engage Sub-processors. A list of Processor's current Sub-processors is set forth in Annex III ("Sub-processor List"). Processor shall maintain and keep current the Sub-processor List and shall make it available to Controller upon request.

6.2 **Notice of Changes.** Processor shall provide Controller with not less than thirty (30) days' prior written notice of any changes to the Sub-processor List, including additions of new Sub-processors or replacements of existing Sub-processors. Controller shall have the right to object to any new or replacement Sub-processor in writing within fifteen (15) days of such notice on reasonable grounds related to data protection.

6.3 **Sub-processor Agreements.** Processor shall impose data protection obligations on all Sub-processors that are equivalent to those set out in this DPA. Processor shall remain fully liable to Controller for the performance of Sub-processors' obligations under this DPA.

7. PERSONAL DATA BREACH NOTIFICATION

7.1 **Notification Obligation.** Processor shall notify Controller of any confirmed Personal Data Breach without undue delay and, in any event, within seventy-two (72) hours of becoming aware of the breach ("Breach Notice"). Where it is not possible to provide complete information within such timeframe, Processor shall provide initial notification within seventy-two (72) hours and supplement such notification with additional information as it becomes available.

7.2 **Content of Breach Notice.** The Breach Notice shall, to the extent known and available at the time, describe: (a) the nature of the breach, including where possible the categories and approximate number of Data Subjects and Personal Data records affected; (b) the name and contact details of a data protection officer or other point of contact from whom further information may be obtained; (c) the likely consequences of the breach; and (d) the measures taken or proposed to be taken to address the breach, including measures to mitigate its possible adverse effects.

7.3 **Cooperation.** Processor shall cooperate fully with Controller in investigating and responding to any Personal Data Breach. Processor shall promptly take all necessary measures to contain the breach and prevent further Personal Data from being compromised.

8. DATA DELETION ON TERMINATION

8.1 **Deletion or Return.** Upon termination or expiration of the Principal Agreement, or upon Controller's written request, Processor shall, at Controller's election: (a) securely delete or destroy all Personal Data processed under this DPA (including all existing copies); or (b) return all Personal Data to Controller in a commonly used, machine-readable format. Processor shall complete such deletion, destruction, or return within sixty (60) days of the termination date or Controller's request.

8.2 **Certification.** Upon completion of deletion or destruction of Personal Data, Processor shall provide Controller with written certification confirming the secure deletion of such data.

8.3 **Retained Copies.** Notwithstanding Section 8.1, Processor may retain Personal Data to the extent required by applicable law or regulation, in which case Processor shall: (a) promptly inform Controller of any such retention; (b) ensure that retained Personal Data is protected in accordance with this DPA; and (c) continue to comply with all applicable Data Protection Laws with respect to such retained data.

9. INTERNATIONAL DATA TRANSFERS

9.1 **Transfer Restrictions.** Processor shall not transfer Personal Data to any country or territory outside the European Economic Area (EEA) or UK (as applicable) without the prior written authorization of Controller, except to the extent that such transfer is covered by an appropriate safeguard under applicable Data Protection Laws.

9.2 **Transfer Mechanisms.** Where Processor transfers Personal Data outside the EEA or UK, Processor shall ensure that one of the following transfer mechanisms is in place: (a) a European Commission or UK adequacy decision; (b) Standard Contractual Clauses (SCCs) approved by the European Commission or the UK Information Commissioner's Office (ICO); (c) binding corporate rules approved by the relevant supervisory authority; or (d) such other mechanism as is recognized as providing an adequate level of protection under applicable Data Protection Laws.

9.3 **Standard Contractual Clauses.** To the extent required by applicable Data Protection Laws, the Parties hereby incorporate by reference the applicable Module Two (Controller to Processor) Standard Contractual Clauses adopted by the European Commission under Decision 2021/914, which are set forth in Annex IV.

10. AUDIT RIGHTS

10.1 **Records and Assistance.** Processor shall make available to Controller all information reasonably necessary to demonstrate compliance with the obligations set forth in this DPA and applicable Data Protection Laws. Processor shall maintain accurate and up-to-date records of all categories of processing activities carried out on behalf of Controller, as required by Article 30(2) of the GDPR.

10.2 **Audits and Inspections.** Upon not less than thirty (30) days' prior written notice, Processor shall allow for and contribute to audits and inspections conducted by Controller or its designated auditor for the purpose of verifying Processor's compliance with the terms of this DPA. Such audits shall be conducted: (a) no more than once per calendar year (unless there has been a Personal Data Breach or a good-faith belief of non-compliance); (b) during normal business hours; (c) in a manner that minimizes disruption to Processor's operations; and (d) subject to the auditor's execution of Processor's standard non-disclosure agreement.

10.3 **Third-Party Certifications.** Processor may satisfy its audit obligations by providing Controller with up-to-date certifications, reports, or extracts from applicable third-party audits (e.g., ISO 27001, SOC 2 Type II) conducted by qualified independent auditors.

11. GENERAL PROVISIONS

11.1 **Conflict.** In the event of any conflict or inconsistency between this DPA and the Principal Agreement with respect to the processing of Personal Data, the terms of this DPA shall prevail.

11.2 **Governing Law.** This DPA shall be governed by the law of England and Wales. Any disputes shall be subject to the exclusive jurisdiction of the courts of England and Wales.

11.3 **Data Protection Officer.** Each Party shall designate a data protection contact. Processor's data protection contact may be reached at: privacy@acmecorporation.com. Controller's data protection contact may be reached at: dpo@clientco.com.

11.4 **Entire Agreement.** This DPA, together with the Principal Agreement and its Annexes, constitutes the entire agreement between the Parties with respect to the subject matter hereof.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation (Processor)

By: ________________________________

Name: ______________________________

Title: _______________________________

Date: _______________________________

ClientCo Ltd. (Controller)

By: ________________________________

Name: ______________________________

Title: _______________________________

Date: _______________________________

---CONTRACT_END---